

ID # _____

RECOMMENDATION: _____

Planning Department
256-586-5968
kjohnson@arabcity.org

Document Submission Information

Please give us your name, email and contact number so we may contact you if needed regarding the document you are submitting.

Thank You.

First Name: _____ Last Name: _____

Email Address: _____

Contact Phone Number(s): _____

ANNEXATION

The Big Picture

The annexation process typically begins when a request for annexation is made from property owners, when folks want to be a part of the City of Arab and gain access to City services. The Planning Commission and City Council pays close attention to annexation requests, because every new addition becomes a part of Arab's long-term plan. Each new ingredient gets measured carefully. In other words: each request means they want to be served by Arab Police, Fire & Rescue, City sanitation, etc. They want their children to go to Arab City Schools.

The Process

The annexation process is dictated by state law. There are four methods of annexation, and only one of those can be used to annex property against the desires of the residents in the area. That is by a local act of the Alabama Legislature.

The remaining three methods require the unanimous consent of the owner, either by an election or by the completion of a petition. The latter is most typical.

Once the city receives the request for annexation through the completion of an application, it goes through a thorough internal review process to determine if annexation is appropriate based on a number of considerations. Those considerations include the ability to serve the area, the benefit to the city, and the potential impact to city schools. If the review determines that the annexation would be beneficial to the city, then the request becomes a petition for annexation and will be forwarded to the Planning Commission.

An essential determination must be made from the get-go: whether the land to be annexed is contiguous to (touches or is directly across) the city limits. If it does lie outside city limits, then the process continues and typically takes about two months. The culmination of the process is the consideration of the petition by the City Council.



OFFICIAL APPLICATION FOR ANNEXATION

For an annexation request, the Planning Department requires completion of the Application for Annexation, including the Demographic Questionnaire and the Statement Regarding Provision of City Services, and a copy of the Current recorded deeds for the properties proposed to be annexed. **A property must be contiguous to the current city limits in order to be annexed into the city of Arab.**

Once the completed annexation application is returned to the Planning Department, the planning staff will conduct a thorough internal review to determine if the property qualifies for annexation. If it qualifies, an official Petition for Annexation will be created. The Petition for Annexation must be signed by the property owners or their legally authorized representative and must also be notarized. Information contained in the Application for Annexation will be forwarded to city agencies and service providers for input regarding their ability to provide services to the properties proposed to be annexed. The responses from these agencies and service providers will be taken into consideration before action is taken on the request for annexation. The annexation process requires 1 to 2 months for completion. Property owners will receive a letter of notification of annexation once the annexation process is complete.

The Application for Annexation must include a copy of the current recorded deeds for the properties proposed to be annexed.

I. Description of Property

- A. Current recorded deeds for properties to be annexed: Attached ☐
- B. Acreage _____
- C. Street address of properties to be annexed: _____
- D. Name of subdivision if applicable _____
- E. Current tax parcel map: Attached ☐
- F. Survey of properties to be annexed, if available: Yes ☐ No ☐

II. Property Owner Information:

Name, full mailing address and phone number of each property owner:
(Attach addition sheets if necessary)

Name _____

Address _____

City _____ State _____ Zip _____ Phone _____

Address _____

City _____ State _____ Zip _____ Phone _____

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I certify that I am the Property owner and I have read this application and that all information contained herein is true and correct.

Date

I certify that if I am **NOT** the owner, I have proper legal authorization from the owner to act as a representative on his/her behalf and that I will be required to provide written documentation of such authorization to the City of Arab.

Date

Address _____

City _____ State _____ Zip _____ Phone _____

DEMOGRAPHIC QUESTIONNAIRE FOR ANNEXATION PETITIONERS

(Please use back of sheet for info if necessary)

(**Census**) Total members in household, including children and tenants of area proposed for annexation: _____

Total Persons of Voting Age _____

Registered Voters _____

Number of Housing Units _____

Street Addresses _____

Number of Trailers _____

Street Addresses _____

(**Zoning**) Names and Address of all Businesses _____

Business Owner/Manager Mailing Address and Phone Number _____

Signs/Billboards on Property _____

If residential, is there a Home Occupation (business) in use on this property? _____

(**Zoning Use**) How many accessory structures are located on property & what is their use? _____

Are there any animals (besides cats & dogs) kept on the property? _____ If so, what kind and how many? _____

Where are the animal enclosures located, including fencing? (Please indicate on the site plan) _____

What type zoning classification is desired for the area proposed for annexation:

____ Agriculture ____ Residential ____ Commercial ____ Industrial

(**Drainage**) Are there any drainage issues that affect this property? _____

Are there any other significant features on the property the city should be aware of? _____

(**Schools**) Ages and Grades of all Children _____

Will you require bus pick-up? _____

Reason for Requesting Annexation _____

**STATEMENT REGARDING
PROVISION OF CITY SERVICES TO NEWLY ANNEXED LANDS**

City services will be provided to all newly annexed lands according to the same policies that already govern in Arab. This means that Arab police and fire departments will respond to calls; garbage and trash will be collected by Republic Services; and school children may attend city rather than county schools. All applicable city ordinances will be enforced including the implementation of zoning regulations. Please note that the National agency that established the rating schedule for fire insurance premiums (ISO) assigns a higher rate to property that is over 5 road miles from their responding fire station and/or over 1000 feet from a fire hydrant.

It has long been the Sewer Board policy to expand sanitary sewer service on a cost benefit basis. This policy applies to all land within the city *regardless of its annexation date*. In addition, the city has adopted a capital improvement plan to guide investment in infrastructure. In order for an area to be considered for road maintenance, drainage improvements, recreational or community facilities, new fire stations, or sanitary sewer extension, the area must be in the city and then must be prioritized according to need. Newly annexed land will be accorded the same consideration as other city lands.

Lastly, it is important to understand that those autonomous boards, agencies and utilities that have authority over the delivery of specific public services set their own policies, procedures, and fees. Property, *regardless of its annexation date*, will be required to connect to these services once they are available in their area, at the property owner's expense.

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I have read the above statement governing the delivery of city services to lands annexed into the city of Arab, and I agree to these conditions as they may pertain to any of my lands that are annexed.

Petitioner _____ **Date** _____

Petitioner _____ **Date** _____

NOTARY CERTIFICATE

STATE OF ALABAMA

COUNTY OF MARSHALL

**I, _____, a Notary Public in and for the said
County in said State, hereby certify that**

**_____, whose name is signed to the
foregoing ANNEXATION PETITION, who are known to me, acknowledged
before me of this day that, being informed of the contents of the within
instrument, he/she executed the same voluntarily on the day the same
bears date.**

**Given under my hand and official seal of office, this _____ day
of _____, 20 _____.**

NOTARY PUBLIC

My Commission Expires: _____